

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
CELESTINE ARTHUR,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER GEORGE KURIAN,

Defendants.

----- X

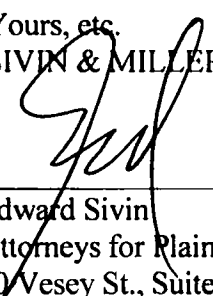
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 29, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Officer George Kurian, c/o NYPD 81st Precinct, 30 Ralph Ave, Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
CELESTINE ARTHUR,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER GEORGE KURIAN,

Defendants.

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Plaintiff, by her attorneys Sivin & Miller, LLP, complaining of defendants,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, notices of claim and intention to sue were duly
served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notices of claim and intention to sue were presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer George Kurian
(hereinafter “Kurian”) was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Kurian was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Kurian was acting under color of state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

8. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

9. That on August 12, 2017, plaintiff was legally upon the private premises of 1845 Atlantic Avenue, Brooklyn, NY (hereinafter "the premises").

10. That while plaintiff was legally upon the premises, NYPD officers, including but not limited to Kurian (hereinafter referred to collectively as "the officers"), entered upon the premises en masse without a warrant, without permission or consent, without justification, and without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit a crime.

11. That after entering upon the premises, the officers forcibly seized plaintiff, ordered plaintiff to the ground, placed plaintiff in handcuffs, and arrested plaintiff without a warrant, without probable cause, and without justification.

12. That following this arrest, the officers forcibly confined and imprisoned plaintiff and/or caused plaintiff to be confined and imprisoned at various other locations, including a police precinct and Central Booking, and searched plaintiff without a warrant and without justification.

13. That plaintiff was wrongfully and illegally imprisoned and incarcerated for a period of approximately thirty-six hours, until her release from custody.

14. That during the course of her detention, plaintiff repeatedly requested of the officers that she be provided access to medication that was prescribed for her and which she was required to take.

15. That the officers deliberately and intentionally failed and refused to allow plaintiff access to her medication.

16. That on or about August 12, 2017, Kurian also initiated and/or caused to be initiated against plaintiff a criminal prosecution in which plaintiff, without probable cause, was charged with consumption of alcohol in public, a crime of which plaintiff was innocent and of which Kurian knew plaintiff to be innocent.

17. That in support of the criminal prosecution, Kurian executed a Criminal Court Complaint in which he intentionally made the false representation, among other things, that he observed plaintiff drinking alcoholic beverages in a public place.

18. That as a consequence of the aforesaid prosecution, plaintiff was required to appear in court and was restricted in her travel and liberty.

19. That on or about August 13, 2017, the criminal charge against plaintiff was dismissed and the criminal proceeding terminated favorably to plaintiff.

20. That the aforesaid actions by Kurian were done intentionally and maliciously.

21. That as a result of the aforementioned actions by Kurian, plaintiff sustained physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of her liberty and freedom, was damaged in her reputation, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST BOTH DEFENDANTS

(Assault and Battery Under NY State Law)

22. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

23. That the aforesaid actions of Kurian and the officers constitute an assault and battery of plaintiff, for which Kurian and the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST BOTH DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

24. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

25. That the aforesaid actions of Kurian and the officers constitute a false arrest and false imprisonment of plaintiff, for which Kurian and the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST BOTH DEFENDANTS

(Malicious Prosecution Under NY State Law)

26. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

27. That the aforesaid actions of Kurian and the officers constitute a malicious prosecution of plaintiff, for which Kurian and the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST KURIAN

(42 U.S.C. § 1983: Fourth Amendment Violations)

28. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

29. That the aforesaid actions by Kurian and the officers in using excessive force against, falsely arresting, falsely imprisoning, searching, and maliciously prosecuting plaintiff constitute unreasonable and illegal searches seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST KURIAN
(42 USC § 1983 Claim Arising From Fourth, Eighth & Fourteenth Amendment Violations)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of Kurian and the officers in failing and refusing to allow plaintiff access to necessary medication constitute a deliberate indifference to serious medical needs and cruel and unusual punishment in violation of plaintiff's rights under the Fourth, Eighth, and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforesaid actions by Kurian and the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Kurian and the officers.

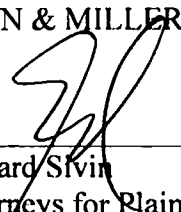
WHEREFORE, plaintiff demands judgment against both defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this

matter, and plaintiff also demands punitive damages against Kurian in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against Kurian and the officers pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
June 29, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

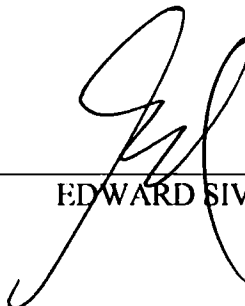
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 29, 2018



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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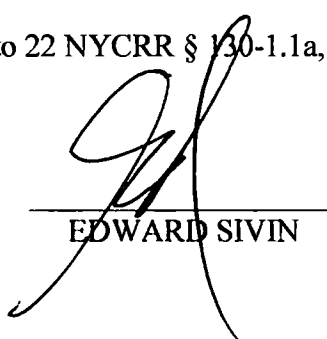
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 29, 2018